

THE PUBLIC GENERAL STATUTES.

[24 GEO. 5.]

CHAPTER 1.

An Act to make further provision with respect to the financial powers of boards administering schemes under the Agricultural Marketing Act, 1931, and with respect to the contents of such schemes; to extend the power to make loans to such boards under section thirteen of the said Act; and for purposes connected with the matters aforesaid. [21st December 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Subsection (1) of section sixteen of the Agricultural Marketing Act, 1933, (which authorises the payment of compensation under schemes) shall be deemed to extend so as to enable a scheme to provide for empowering the board, in such class of cases as may be specified in the scheme, to pay compensation to registered producers in respect of any loss which, in the opinion of the board, has been occasioned to such producers by the operation of any scheme, whether administered by that board or not.

Payment of compensation to producers under marketing schemes.
23 & 24
Geo. 5. c. 31.

2. A scheme may provide for empowering the board, subject to such limitations as may be specified in the scheme,—

(a) to lend or grant money to any other board;

Power of marketing boards to make loans and grants

and to enter
into guaran-
tees.

- (b) to guarantee payment by any other board of any sums which that board may be liable to pay on account of principal or interest in respect of any loan made to them;

and in that event may further provide for securing that any loan, grant or guarantee not specifically authorised by the scheme shall not be made or given by the board except in pursuance of a resolution of the board specifying all material particulars relating to the proposed transaction, being a resolution which has been previously notified to, and approved by, the registered producers in accordance with such requirements in that behalf as may be contained in the scheme.

Application
of loans and
grants made
to market-
ing boards.

3.—(1) The board administering a scheme shall have power to accept from any other person any grant to be applied for any of the purposes for which the board are empowered to expend money.

(2) A scheme may provide for empowering the board, in any case where a loan or grant is proposed to be made to them, to agree with the person proposing to make the loan or grant, as the case may be, and, in the case of a loan, with any person proposing to guarantee the repayment thereof, that if the loan or grant is duly made or the guarantee duly given, the board will apply the money obtained by them by means of the loan or grant subject to such conditions (including conditions as to the persons on whose advice the board is to act in applying the said money) as may be specified in the agreement.

(3) Where a scheme provides for empowering the board to make any such agreement as aforesaid, the scheme—

- (a) shall impose upon the board the duty of carrying into effect any such agreement entered into by them; and
- (b) may provide that where such an agreement contains conditions requiring the board to act on the advice of any specified persons, the provisions of the scheme entitling a registered producer who is aggrieved by any act or omission of the board to refer the matter to arbitration shall not apply in relation to anything done, or omitted to be done, by the board in pursuance of the agreement.

4.—(1) The Minister may by order empower any specified board to guarantee, subject to such limitations and conditions as may be imposed by the order, the payment by any other specified board of any sums which the last-mentioned board may be liable to pay on account of principal or interest in respect of any loan made to them within the period of one year from the commencement of this Act, and the order may further provide for securing that where, in pursuance of the order, a guarantee is given in respect of a loan made to a board, the money obtained by that board by means of the loan shall, notwithstanding anything in any Act or scheme, be applied by the board for such purpose, and subject to such conditions (including conditions as to the persons on whose advice the board is to act in applying the said money), as may be specified in the order.

Temporary power of Minister to authorise marketing boards to give guarantees.

(2) An order under this section may make such modifications in any scheme to which the order relates as appear to the Minister to be necessary for giving effect to the order.

5. For the purposes of section thirteen of the principal Act (which enables short term loans to be made out of the agricultural marketing funds constituted by that Act) any expenses incurred by virtue of this Act by the board administering a scheme (whether approved before or after the commencement of this Act), being expenses incurred within the period of one year from the date on which the scheme came into force, shall be deemed to be expenses incurred in connection with the initial working of the scheme.

Amendment of s. 13 of 21 & 22 Geo. 5. c. 42.

6.—(1) Section five of the principal Act shall have effect as if it were extended so as to enable a scheme to provide for empowering the board—

Extension of powers of marketing boards to purchase and deal with products.

- (a) to buy from the board administering any corresponding scheme any product the marketing of which is regulated by that scheme;
- (b) to produce from anything bought by the board under any provision contained in the scheme by virtue of paragraph (a) of this subsection any commodity which the board are authorised to produce from the regulated product;
- (c) to sell, grade, pack, store, adapt for sale, insure, advertise and transport anything so bought as

aforesaid and any commodity produced therefrom by the board;

- (d) to exercise, as agents for the board administering any corresponding scheme, any power of that board to deal in any manner mentioned in paragraph (c) of this subsection with any product the marketing of which is regulated by that scheme.

In this subsection the expression "corresponding scheme" means, in relation to a scheme under the principal Act, any other scheme under that Act or any scheme under corresponding legislation enacted by the Parliament of Northern Ireland, being in either case a scheme for regulating the marketing of the same product as the product the marketing of which is regulated by the first-mentioned scheme.

(2) The Minister, at the request of the board administering any scheme submitted before the commencement of this Act, may, during the period of one year from the commencement of this Act, make an order conferring upon the board all or any of the powers which might, by virtue of the foregoing subsection, be conferred on them by the scheme.

Interpre-
tation of
terms, and
revocation
of orders.

7.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

"Scheme" means a scheme under the principal Act; and

21 & 22.
Geo. 5. c. 42.

"The principal Act" means the Agricultural Marketing Act, 1931;

and any expression to which a meaning is assigned by section eighteen of the principal Act has the same meaning when used in this Act.

(2) Any order made under this Act by the Minister may be revoked by a subsequent order made in like manner.

Short title
and citation.

8. This Act may be cited as the Agricultural Marketing (No. 2) Act, 1933, and shall be included among the Acts which may be cited as the Agricultural Marketing Acts, 1931 to 1933.

